

UNITED STATES DISTRICT COURT
SOUTHERN DISTRICT OF NEW YORK

-----X
TOLAN BAKER,

COMPLAINT

**15 CV 541 (ER)
ECF Case**

Plaintiff,

vs.

The CITY OF NEW YORK, POLICE OFFICERS
ALEXANDER ALIGNAY, Shield 22459,
JOHN DOE 1 and 2, and JANE DOE,
in their individual and official capacities,

JURY TRIAL DEMANDED

Defendants.
-----X

Plaintiff Tolan Baker, by his attorney, Cyrus Joubin, complaining of the Defendants,
respectfully alleges as follows:

PRELIMINARY STATEMENT

1. This civil rights action arises from the unlawful stop and malicious prosecution of Tolan Baker (“Plaintiff”) on the false and fabricated grounds that he was publicly consuming alcohol when he was confronted on the street by four NYPD officers. Plaintiff asserts constitutional claims pursuant to 42 U.S.C. § 1983 (“Section 1983”) against the individual defendants for unreasonable search and seizure, illegal detention, malicious prosecution, and failure to intervene, and a *Monell* claim against the City of New York for the same constitutional violations. Additionally, Plaintiff asserts analogous claims under New York Law against the individual defendants, and against the City of New York under the doctrine of *respondeat superior*. Plaintiff seeks compensatory and punitive damages, costs, disbursements, and attorney’s fees pursuant to applicable state and federal civil rights law.

JURISDICTION

2. This action is brought pursuant to 42 U.S.C. § 1983 and 42 U.S.C. § 1988 and the Fourth Amendment to the United States Constitution. Jurisdiction is conferred upon this Court by 28 U.S.C. §§ 1331, 1343 (a)(3) and (4), this being an action seeking redress for the violation of Plaintiff's constitutional and civil rights.

3. Plaintiff further invokes this Court's supplemental jurisdiction, pursuant to 28 U.S.C. § 1367, over any and all state law claims and causes of action which derive from the same nucleus of operative facts and are part of the same case or controversy which gives rise to the federally based claims and causes of action.

VENUE

4. Venue is proper in the United States District Court for the Southern District of New York pursuant to 28 U.S.C. § 1391(b) because the acts complained of occurred in this district.

JURY DEMAND

5. Plaintiff respectfully demands a trial by jury on each and every one of his claims as pled herein, pursuant to Fed. R. Civ. P. 38(b).

PARTIES

6. Plaintiff Tolan Baker is a 40-year-old, African-American male, gainfully employed; he is a United States citizen, and a resident of New York City.

7. The individually named defendants Police Officer Alexander Alignay (Shield # 22459) ("PO Alignay"), Police Officers John Doe 1 and 2 ("PO Doe 1" and "PO Doe 2"), and Police Officer Jane Doe ("PO Jane Doe") (collectively, the "individual

defendants”) are and were at all times relevant herein officers, employees and agents of the New York City Police Department (“NYPD”).

8. On the date of the incident giving rise to this complaint, the individual defendants were assigned to the NYPD 32nd Precinct.

9. Each individual defendant is sued in his individual and official capacity. At all times mentioned herein, each individual defendant acted under the color of state law, in the capacity of an officer, employee, and agent of defendant City of New York (“Defendant City”).

10. Defendant City is a municipality created and authorized under the laws of New York State. It is authorized by law to maintain, direct, and to supervise the NYPD, which acts as its law enforcement agent and for which it is ultimately responsible.

NOTICE OF CLAIM

11. Plaintiff served a Notice of Claim on the Comptroller of the City of New York within ninety days of the incident, being assigned Claim # 2014PI023853. At least 30 days have elapsed since the service of the Notice of Claim, and adjustment and payment has been neglected or refused.

12. The City of New York demanded a hearing pursuant to General Municipal Law § 50-h, which hearing was held on October 8, 2014.

13. This action has been commenced within one year and ninety days after the occurrence of the event upon which the claims are based.

STATEMENT OF FACTS

14. On February 8, 2014, around 11:50 PM, Plaintiff was walking in Harlem with two friends, Irving Jackson (“Mr. Jackson”) and Eric Brown (“Mr. Brown”).

15. The three men had been hanging out together for a couple of hours, going to the liquor store, having a few drinks, and taking out food from a restaurant on 2261 7th Avenue.

16. There Plaintiff and his friends purchased a bottle of Snapple peach-flavored iced tea. As the three men ate their food and walked away from the restaurant, Plaintiff poured some of the iced tea into a white Styrofoam cup (“the Cup”) that he was carrying, using it to drink vodka from the liquor store.

17. After leaving the restaurant, Plaintiff and his friends threw away the bottle of vodka and walked one block south to a lounge, where they stood outside and conversed with acquaintances from the neighborhood.

18. Afterward, around 11:50 PM, the three men walked east on 132nd Street, heading towards Madison Avenue, where they planned to separate and go home. Plaintiff still carried the Cup, which at that point contained only iced tea.

19. When the men reached the intersection of 132nd Street and Lenox Avenue, outside 441 Lenox Avenue, a group of four uniformed NYPD Officers – the individual defendants – approached and demanded to see Plaintiff’s identification.

20. Mr. Jackson and Mr. Brown responded, “For what? We’re doing nothing wrong.” One of the individual defendants said, “We didn’t ask you what you did.”

21. Plaintiff, not wanting tension, put the Cup on a window ledge in front of the corner store so that he could reach into his pocket and take out his New York State Identification, which Plaintiff promptly gave to the individual defendants.

22. The individual defendants checked Plaintiff’s background, learned he had no warrants, then handed back Plaintiff’s ID.

23. PO Alignay asked Plaintiff what was in the Cup, to which Plaintiff responded “juice,” referring to the Snapple peach iced-tea (which tastes more like juice than tea). PO Alignay smelled the cup and responded, “No, this is Hennessy,” and proceeded to write Plaintiff a summons (#4415392096) (“the Summons”) for public consumption of alcohol.

24. Meanwhile, Plaintiff could hear PO Jane Doe excoriate Mr. Jackson and Mr. Brown, who were trying to assert their right to walk in their own neighborhood peacefully and undisturbed. She told them, “This is none of your damn business – get off this curb, or we’ll take you to jail.”

25. Plaintiff knew PO Alignay’s accusation of Hennessy was wrong and the Summons was baseless, but the rising tension between his friends and the individual defendants made Plaintiff nervous. “Just give me the ticket,” Plaintiff said, wanting the episode safely resolved. “We want to be on our way.”

26. The Summons, signed by PO Alignay, falsely alleged that PO Alignay “observed the defendant [Plaintiff]...holding an 7 oz plastic cup with Hennessy cognac in plain view,” and falsely alleged that Plaintiff said: “It’s Hennessy.” Plaintiff never made any such statement, which was a blatant fabrication to buttress the charge; and the Cup was opaque Styrofoam, not plastic, another transparent fabrication, this one attempting to establish “plain view” and thereby justify the unlawful stop of Plaintiff.

27. The Summons required Plaintiff to appear in NYC Criminal Court at 346 Broadway (“the Court”) in Manhattan where his case was assigned Docket Number 2014SN022398.

28. At Court Plaintiff was charged with violating New York City Administrative Code Section 10-125(b), public consumption of alcohol in a public place. Similar to the Summons, the Complaint, signed by PO Alignay, alleged that Plaintiff “walk[ed] on a public sidewalk holding an 7 oz plastic cup with Hennessy Cognac in plain view,” and further falsely alleged that Plaintiff told PO Alignay, “It’s Hennessy.”

29. Plaintiff appeared at Court twice before his case was dismissed on May 27, 2014 for failure to prosecute because PO Alignay failed to show up to Court despite being notified.

30. The NYPD failed to supervise and discipline the individual defendants despite their histories of malicious and mendacious behavior, ignoring the risk that they would engage in future misconduct, thereby encouraging them to continue to abuse their powers and violate the rights of civilians.

31. There is a systemic failure to identify, discipline, and supervise NYPD officers who fabricate charges, a failure so widespread, obvious, and tolerated as to constitute a custom and policy of Defendant City.

32. The NYPD’s flaccid response to lying officers – particularly in the context of filing false charges – constitutes an irrational custom and policy that fosters a culture of mendacity in the NYPD.

33. Proportionate and appropriate discipline sends a message to NYPD officers that they are not above the law and are accountable to the people whom they serve. But when it comes to making false statements on court documents, NYPD officers almost never face discipline.

34. The Civilian Complaint Review Board (“CCRB”) has no jurisdiction to investigate allegations of fabricated statements by NYPD officers in criminal court documents. Investigating, controlling, and punishing this type of wrongdoing is the responsibility of the NYPD.

35. The inadequacy of NYPD’s supervision and discipline with respect to dishonesty in the filing of criminal charges is exacerbated by the pressure on police officers to meet arrest quotas, or “performance goals,” which pressure officers to arrest people and file charges unlawfully, a pressure not tempered by adequate safeguards that ensure citizens are not wrongfully arrested and charged.

36. As a direct and proximate cause of the said acts of the Defendants, Plaintiff suffered the following injuries and damages:

- a. Violation of his constitutional rights under the Fourth Amendment to the United States Constitution;
- b. Severe emotional trauma, distress, degradation, and suffering;

SECTION 1983 CLAIMS

FIRST CLAIM

Deprivation of Federal Civil Rights Under Section 1983

37. Plaintiff realleges and reiterates all allegations set forth in the preceding paragraphs as if stated fully herein.

38. All of the aforementioned acts of Defendants, their agents, servants and employees, were carried out under the color of state law.

39. All of the aforementioned acts deprived Plaintiff of the rights guaranteed to citizens of the United States by the Fourth Amendment to the Constitution of the United States of America, and in violation of 42 U.S.C. § 1983.

40. The individual defendants acted willfully, knowingly, and with the specific intent to deprive Plaintiff of his constitutional rights secured by 42 U.S.C. § 1983, and by the Fourth Amendment of the United States Constitution.

41. As a direct and proximate result of the misconduct and abuse of authority detailed above, Plaintiff sustained the damages and injuries hereinbefore alleged .

SECOND CLAIM

Illegal Stop, Search, and Seizure Under Section 1983

42. Plaintiff realleges and reiterates all allegations set forth in the preceding paragraphs as if stated fully herein.

43. By the actions described above, Defendants deprived Plaintiff of his federal civil rights, including his Fourth Amendment right to be secure in his person against unreasonable searches and seizures.

44. As detailed above, the individual defendants intentionally stopped, questioned, and detained Plaintiff without reasonable suspicion, and without privilege or consent.

45. As a direct and proximate result of the misconduct and abuse of authority detailed above, Plaintiff sustained the damages and injuries hereinbefore alleged.

THIRD CLAIM

Malicious Prosecution Under Section 1983

46. Plaintiff realleges and reiterates all allegations set forth in the preceding paragraphs as if stated fully herein.

47. By the actions described, the Defendants deprived Plaintiff of his Fourth Amendment right to be free of unreasonable or unwarranted restraints on personal liberty, specifically his right to be free from malicious prosecution.

48. Without probable cause, the individual defendants directly and actively initiated a criminal proceeding against Plaintiff, creating a fraudulent theory of guilt, providing a mendacious complaint to the D.A..

49. As a direct and proximate result of the misconduct and abuse of authority detailed above, Plaintiff sustained the damages and injuries hereinbefore alleged .

FOURTH CLAIM

Failure to Intervene Under Section 1983

50. Plaintiff realleges and reiterates all allegations set forth in the preceding paragraphs as if stated fully herein.

51. Each and every individual defendant had an affirmative duty to intervene on Plaintiff's behalf to prevent the violation of his constitutional rights by other law enforcement officers.

52. The individual defendants failed to intervene on Plaintiff's behalf to prevent, end, or truthfully report the violations of his constitutional rights despite knowing about such violations and having had a realistic opportunity to do so.

53. As a direct and proximate result of the aforementioned conduct of the individual defendants, Plaintiff sustained the damages and injuries hereinbefore alleged .

FIFTH CLAIM

Municipal Liability Under Section 1983

54. Plaintiff realleges and reiterates all allegations set forth in the preceding paragraphs as if stated fully herein.

55. By the actions described, the Defendant City deprived Plaintiff of his Fourth Amendment rights through its official policy and custom of having weak disciplinary measures for NYPD officers who have histories and propensities of dishonesty and abuse of power; a policy and custom of failing to adequately investigate and punish misconduct, which encourages unscrupulous officers to deprive citizens of rights.

56. By failing to seriously investigate and truly assess the individual defendants' abuses of power, and by failing to appropriately supervise and discipline them, the NYPD tacitly endorsed their reprehensible and disordered behavior, empowering them to continue such behavior. By continuing to allow the individual defendants – and other potentially malicious, dishonest, rogue officers – the power to, among other things, carry a gun, make arrests, and initiate criminal charges against New Yorkers, the Defendant City has exhibited deliberate indifference to the safety, well-being, and rights of New Yorkers.

57. As a direct and proximate result of the acts of Defendant City, Plaintiff sustained the other damages and injuries hereinbefore alleged .

PENDENT STATE CLAIMS

FIRST CLAIM

False Imprisonment under N.Y. State Law

58. Plaintiff realleges and reiterates all allegations set forth in the preceding paragraphs as if stated fully herein.

59. The individual defendants intentionally detained Plaintiff without probable cause, without a warrant, and without privilege or consent.

60. As a direct and proximate result of the misconduct and abuse of authority detailed above, Plaintiff sustained the damages and injuries hereinbefore alleged .

SECOND CLAIM

Malicious Prosecution Under N.Y. State Law

61. Plaintiff realleges and reiterates all allegations set forth in the preceding paragraphs as if stated fully herein.

62. As detailed above, the individual defendants intentionally and with actual malice initiated prosecution against Plaintiff without probable cause. The prosecution terminated in Plaintiff's favor when all charges against him were dismissed.

63. As a direct and proximate result of the misconduct and abuse of authority detailed above, Plaintiff sustained the damages and injuries hereinbefore alleged .

THIRD CLAIM

Unreasonable Search and Seizure Under New York State Constitution Art. I § 12

64. Plaintiff realleges and reiterates all allegations set forth in the preceding paragraphs as if stated fully herein.

65. Article 1, Section 12, of the New York State Constitution declares the right to be free from unreasonable searches and seizures.

66. Without probable cause and without Plaintiff's consent, the individual defendants arrested Plaintiff, searched his person, took his property, confined him, and initiated false charges against him.

67. As a direct and proximate result of the misconduct and abuse of authority detailed above, Plaintiff sustained the damages and injuries hereinbefore alleged .

FOURTH CLAIM

Negligent Hiring/Training/Retention of Employment Services Under N.Y. State Law (Against Defendant City of New York)

68. Plaintiff realleges and reiterates all allegations set forth in the preceding paragraphs as if stated fully herein.

69. Defendant City owed a duty of care to Plaintiff to prevent the false arrest, malicious prosecution, and mental and emotional abuse sustained by Plaintiff.

70. Upon information and belief, all of the individual defendants were unfit and incompetent for their positions.

71. Defendant City knew or should have known through the exercise of reasonable diligence that the individual defendants could potentially cause harm.

72. Defendant City's negligence in hiring, screening, training, disciplining and retaining the individual defendants proximately caused Plaintiff's injuries.

73. As a result of its negligent conduct, Defendant City has directly and proximately caused the damages and injuries hereinbefore alleged.

FIFTH CLAIM

Respondeat Superior Under N.Y. State Law

74. Plaintiff realleges and reiterates all allegations set forth in the preceding paragraphs as if stated fully herein.

75. Defendant City is the employer of the individual defendants.

76. Under the doctrine of *respondeat superior*, the Defendant City is responsible for the wrongdoing of its employees acting within the scope of their employment – in this case, the false imprisonment, malicious prosecution, and unreasonable search and seizure committed by the individual defendants against Plaintiff.

77. As a direct and proximate result of the acts of the individual defendants detailed above, Plaintiff sustained the damages and injuries hereinbefore alleged.

PRAYER FOR RELIEF

WHEREFORE, Plaintiff demands the following relief jointly and severally against the Defendants:

- a. An order awarding compensatory damages for Plaintiff Tolan Baker in an amount to be determined at trial;
- b. An order awarding punitive damages in an amount to be determined at trial;
- c. A court order, pursuant to 42 U.S.C. § 1988, that Plaintiff is entitled to reasonable attorney's fees, costs and disbursements; and
- d. Such other and further relief as this Court may deem appropriate.

DATED: January 26, 2015
New York, New York

____s/
CYRUS JOUBIN, ESQ.
88 Pine St., 14th Floor
New York, NY 10005
(703) 851-2467
joubinlaw@gmail.com
Attorney for Tolan Baker